

**SENATE SUBSTITUTE FOR
HOUSE BILL NO. 4262**

A bill to provide for certain investigations for violating the event online ticket sales act; to prescribe the powers and duties of certain state agencies and departments; and to prescribe civil sanctions and provide certain remedies.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 1. For the purposes of this act, the definitions in
2 section 3 of the event online ticket sales act apply to the use of
3 those terms in this act.

4 Sec. 3. The attorney general may investigate a claim that a
5 person has violated the event online ticket sales act.

6 Sec. 5. (1) A person that violates the event online ticket
7 sales act is subject to a civil fine of not more than \$5,000.00. A
8 fine collected must be deposited in the general fund.



1 (2) Each ticket acquired in violation of the event online
2 ticket sales act constitutes a separate violation for the purpose
3 of assessing a civil fine under this section.

4 Sec. 7. (1) If the attorney general determines that a
5 violation is imminent or a person is in the process of violating
6 the event online ticket sales act, the attorney general may bring a
7 civil action to restrain, enjoin, or prevent the person from
8 violating or continuing to violate the event online ticket sales
9 act.

10 (2) If the attorney general determines that a person has
11 violated the event online ticket sales act, the attorney general
12 may bring a civil action against the person for appropriate relief,
13 including injunctive relief or to collect the civil fine as
14 provided for under section 5. The attorney general may also recover
15 restitution.

16 (3) A person that violates a court order or injunction issued
17 to enforce the event online ticket sales act is subject to a civil
18 fine of not more than \$5,000.00.

19 Sec. 9. The court may allow the attorney general to recover
20 reasonable costs and attorney fees incurred in an action resulting
21 in the imposition of a civil fine under this act.

22 Enacting section 1. This act does not take effect unless
23 Senate Bill No. 158 of the 103rd Legislature is enacted into law.

